

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1636

 By: Hicks and Goodwin of the
 Senate

6 and

7 Ford of the House

8
9 An Act relating to law enforcement; defining terms;
10 requiring certain review upon certain request;
11 stating review criteria; clarifying individuals
12 authorized to make certain review; requiring
13 confirmation of receipt; prohibiting more than one
14 review at given time; stating time frame for which
15 certain review shall be concluded; authorizing
16 certain extension of time frame; requiring certain
17 notice; requiring certain coordination; requiring
18 certain consultation and meeting; stating time frame
19 for which additional review is prohibited; construing
20 provision; providing for codification; and providing
21 an effective date.

22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. NEW LAW A new section of law to be codified
24 in the Oklahoma Statutes as Section 146 of Title 21, unless there is
25 created a duplication in numbering, reads as follows:

26 A. For the purposes of this section:

1 1. "Case file review" means a review of all information,
2 evidence, records, testimonies, and other pertinent information
3 regarding a cold case;

4 2. "Cold case" means a case of violent crime, as provided for
5 in Section 571 of Title 57 of the Oklahoma Statutes, for which all
6 probative investigative leads have been exhausted and for which no
7 likely perpetrator has been identified;

8 3. "Designated person" means an immediate family member or
9 similar individual as determined by the law enforcement agency
10 reviewing a case file;

11 4. "Immediate family member" means the spouse, a child by birth
12 or adoption, a stepchild, a parent by birth or adoption, a
13 stepparent, a grandparent, a grandchild, a sibling, or a stepsibling
14 of a victim;

15 5. "Law enforcement agency" means any department or agency of
16 the state, a county, a municipality, or a political subdivision
17 thereof, with the duties to maintain public order, make arrests, and
18 enforce the criminal laws of this state or municipal ordinances and
19 that employs personnel certified by the Council on Law Enforcement
20 Education and Training; and

21 6. "Victim" means the victim of a violent crime.

22 B. 1. A law enforcement agency shall review the case file
23 regarding a cold case upon written application by a designated
24

1 person to determine if further investigation would result in
2 probative investigative leads.

3 2. The case file review shall include, but not be limited to:

4 a. an analysis of the investigative steps or follow-up
5 steps that may contribute to the initial
6 investigation,

7 b. an assessment of whether witnesses should be
8 interviewed or reinterviewed,

9 c. a review of physical evidence to determine if all
10 appropriate forensic testing and analyses were
11 performed in the first instance or if additional
12 testing might produce information relevant to the
13 investigation, and

14 d. a modernization of the file to raise it to current
15 investigative standards to the extent that it would
16 develop probative leads.

17 3. The person or persons employed by a law enforcement agency
18 and performing the case file review shall not have previously
19 investigated the cold case being reviewed.

20 4. The law enforcement agency shall confirm receipt of the
21 request for a case file review in writing within thirty (30) days of
22 receipt of the application pursuant to paragraph 1 of this
23 subsection.
24

1 5. Only one case file review shall be undertaken at a time with
2 respect to the same victim.

3 6. a. The law enforcement agency reviewing a cold case
4 shall, within six (6) months of receiving an
5 application for a case file review, reach a conclusion
6 about whether further investigation is warranted
7 pursuant to paragraph 1 of this subsection.

8 b. The law enforcement agency shall be authorized to
9 extend the time requirement pursuant to subparagraph a
10 of this paragraph for a period of up to six (6) months
11 at a time if the law enforcement agency determines
12 that the number of case files to be reviewed would
13 make it impracticable to comply with the provisions of
14 this subsection. The law enforcement agency shall
15 provide written notice and an explanation of the
16 reasoning for extending the time frame for conclusion
17 of a case file review to the designated person who
18 made the written application pursuant to paragraph 1
19 of this subsection.

20 C. If there is more than one law enforcement agency that would
21 be subject to reviewing the same cold case, the law enforcement
22 agencies shall jointly coordinate the case file review.

23 D. 1. The law enforcement agency shall consult with the
24 designated person who filed a written application pursuant to

1 paragraph 1 of subsection B of this section and provide the
2 designated person with periodic updates during the case file review.

3 2. The law enforcement agency shall meet with the designated
4 person and discuss the findings to explain the decision whether to
5 engage in further investigation.

6 E. 1. If a case file review is completed and the law
7 enforcement agency concludes that further investigation is not
8 warranted, no additional review shall be taken for the same cold
9 case for at least five (5) years, unless new evidence that is
10 materially significant is discovered.

11 2. If a suspect is not identified after further investigation,
12 no additional case file review or further investigation shall be
13 undertaken for the same cold case for at least five (5) years.

14 F. The provisions of this section shall not be construed to
15 interfere with the ability of law enforcement to conduct further
16 investigation.

17 SECTION 2. This act shall become effective November 1, 2026.

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19 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
20 OVERSIGHT, dated 04/16/2026 - DO PASS.
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